

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

DOCKET NO. 25-14

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent.

_____ /

JOINT MOTION FOR ENTRY OF CONFIDENTIALITY ORDER

Complainant, Way2go Cargo Corp., (“Complainant”) and Respondent, Oak Way Cargo, LLC (“Respondent”) jointly request that the Commission issue an order issuing the attached confidentiality agreement. The purpose of the confidentiality agreement is to ensure that sensitive business information is not publicly revealed or used for purposes other than this litigation.

Date: February 26, 2026.

Respectfully submitted,

Barakat + Bossa, PLLC
Attorneys for Respondent
201 Alhambra Circle, Suite 1060
Coral Gables, Florida 33134
T: 305-444-3114
zkass@b2b.legal

EPGD ATTORNEYS AT LAW, P.A.
Attorneys for Complainant
777 SW 37th Ave., Ste 510.
Miami, Florida 33135
T: (786) 837-6787 F: (305) 239-3640
jennifer@epgdlaw.com

By: /s/ Schneur Zalman Kass
SCHNEUR ZALMAN KASS
Florida Bar No. 100554

By: /s/ Jennifer Roldan
JENNIFER ROLDAN
Florida Bar No. 1003369

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e-mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for Way2Go Cargo Corp., at sarah@epgdlaw.com and jennifer@epgdlaw.com on this 26th day of February, 2026.

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STIPULATED CONFIDENTIALITY ORDER

Pursuant to stipulation by and between Complainant, Way2go Cargo Corp., (“Complainant”) and Respondent, Oak Way Cargo, LLC (“Respondent”) (collectively, the “Parties”), in this Confidentiality Order (this “Order”) that, with regard to material disclosed in the course of the above-styled lawsuit (the “Lawsuit”), including confidential information of non-parties to the Lawsuit, the following procedures shall govern:

1. Due to the nature of the lawsuit, the Parties may be asked to produce documents and other information relating to confidential information, including their respective trade secrets, other proprietary confidential information, and agreements containing confidentiality provisions (collectively, “Confidential Material”).

2. The Parties agree that the Confidential Material shall be produced and shall be used solely in connection to the Lawsuit and the preparation for trial and/or evidentiary hearing(s) of the Lawsuit or any related appellate proceedings and not for any other purpose, including, without limitation, any other litigation, arbitration, or any business or competitive purpose or function.

3. The Parties may designate any Confidential Material produced or filed in the Lawsuit as confidential and subject to the terms of this Order by marking such materials “Confidential.” Any material designated as “Confidential” may not be used for any purpose other

than this Litigation and shall not be disclosed to any person or entity, except for the persons or entities listed in Paragraph 4.

4. The Confidential Material and information derived from the Confidential Material may be disclosed only to the following:

- a. Counsel of record for any party to this Lawsuit;
- b. Paralegal, stenographic, clerical, and secretarial personnel regularly employed by counsel for any party to this Lawsuit;
- c. A party or any officer, director, employee, former employee, partner, or in-house legal personnel of such party (or a parent, subsidiary, or affiliate of the party) who is responsible for assisting or providing information in connection with this Lawsuit.
- d. The Commission or any Commission personnel;
- e. A Commission reporter or officer before whom any deposition is taken;
- f. Any outside expert retained in connection with this Lawsuit; and
- g. The jury, if any, at the trial in this Lawsuit.

Should the need to amend this list arise during the course of the Lawsuit or any appeal thereafter, such list may be amended by written agreement of counsel for both Parties without the need for a Commission Order.

5. **Highly Confidential—Attorneys’ Eyes Only” Designation.** A Party may designate as “Highly Confidential—Attorneys’ Eyes Only” any document or portion of a document and any other thing, material, testimony or other information, that meets the “confidential” designation and also is a trade secret or highly sensitive non-public commercial financial information or highly sensitive private corporate information relating to any current or former business in which a Party has an interest and which it reasonably and in good faith believes

that disclosure to persons other than counsel for the Parties could reasonably be expected to result in significant injury to that Party. Information designated as Highly Confidential—Attorneys’ Eyes Only may not be used for any purpose other than this Litigation, and shall be disclosed only to the receiving party’s legal counsel. Such information shall not be disclosed to the receiving party, its in-house counsel, or any employee of the receiving party unless agreed upon in writing by the disclosing party or further ordered by the Commission. Information designated as Highly Confidential—Attorneys’ Eyes Only may be used solely for the purpose of this litigation and not for any other purpose whatsoever. The receiving party’s legal counsel shall take all reasonable steps to maintain the confidentiality of the Highly Confidential—Attorneys’ Eyes Only information and shall carefully restrict access to such information to persons who have a need to know for the purposes of this litigation. All material designated as Highly Confidential—Attorneys’ Eyes Only shall be securely stored and handled in a manner that ensures that access is strictly limited. Upon conclusion of the litigation, all such material, along with any copies, must be returned to the disclosing party or destroyed, at the discretion of the disclosing party, and a certification of such return or destruction shall be provided to the disclosing party, upon request. Any unauthorized disclosure of Highly Confidential—Attorneys’ Eyes Only information may be immediately brought to the Commission’s attention for appropriate action, which may include sanctions, contempt proceedings, or other legal or equitable remedies as deemed appropriate by the Commission.

6. In the event that any question is asked at a deposition that calls for the disclosure of Confidential Material, the witness shall answer such question provided that the only persons in attendance at the deposition are persons who are qualified to receive such information pursuant to this Order. Deposition testimony may be designated as confidential during the deposition or within 21 days of receipt of the deposition transcript . All deposition testimony identified and designated

on record at the deposition as Confidential shall be treated in the interim as “Confidential Material” pursuant to Paragraph 3 above. When Confidential Material is incorporated in a deposition transcript, the party noticing the deposition shall be responsible for designating such information confidential and shall make arrangements with the Commission reporter not to disclose any information designated and identified on record as Confidential, except in accordance with the terms of this Order.

7. The restrictions on the use of Confidential Material established pursuant to this Order do not apply to the party, person, or entity producing such material.

8. Any documents filed with the Commission that reveals any Confidential Material must be filed under seal or appropriately redacted and comply with the Commission’s procedures, and any other applicable law. Upon failure of the filing party to so file a document under seal, the producing party or any party claiming confidentiality with respect thereto may file a notice and motion of confidential material and seek to have confidential material sealed.

9. If a Party believes that any Confidential Material does not contain confidential information, it may contest the applicability of this Order to such information by notifying the designating party’s counsel in writing and identifying the information contested. The Parties shall have twenty days after such notice to confer and attempt to resolve the issue. If the dispute is not resolved within such period, the party objecting to the protection shall have thirty days in which to make a motion with respect to the contested information. Information that is subject to a dispute as to whether it is properly designated Confidential shall be treated as designated Confidential in accordance with the provisions of this Order until the Commission issues a ruling.

10. At the conclusion of the Lawsuit and any appeals, or upon other termination of the Lawsuit, the Confidential Material received under the provisions of this Order shall upon request

of the producing party: (a) be tendered back to the producing party, person or entity; or (b) at the direction of the producing party, person, or entity, be destroyed.

11. Inadvertent failure to designate any material “Confidential” shall not constitute a waiver of an otherwise valid claim of confidentiality pursuant to this Order. At such time that an inadvertent failure is discovered, arrangements shall be made by the Parties to designate the material “Confidential” in accordance with this Order.

12. In the case of an inadvertent violation of this Order, the party claiming the violation shall have the burden of establishing that the violation was other than inadvertent. The party who inadvertently violates a term or terms of this Order shall, upon request, make a reasonable effort to correct same.

13. This Order shall be without prejudice to the right of the Parties to oppose production of any information or object to its admissibility into evidence.

14. After the termination of this Lawsuit, the provisions of this Order shall continue to be binding, and this Commission shall retain jurisdiction over the Parties and any other person who has access to documents and information produced pursuant to this Order for the sole purpose of enforcement of its provisions.

15. This Order may be signed in counterpart by the Parties’ respective counsel and when signed shall become binding and effective as to each such party.

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